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IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **ANDREW DERRICK, et al.,**	2:26-cv-00004-DJC **DEFENDANTS' NOTICE OF MOTION AND MOTION TO STRIKE OR, IN THE ALTERNATIVE, OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE SUPPLEMENTAL OPPOSITION TO DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES** Date: March 19, 2026 Time: 10:00 a.m. Courtroom: 9, 13th Floor Judge: The Honorable Jeremy D. Peterson Trial Date: N/A Action Filed: January 5, 2026

TO PLAINTIFF, BRENDANT NGEHSI NEWANFORBI, APPEARING PRO SE:

PLEASE TAKE NOTICE THAT pursuant to Eastern District of California Local Rule 230(m), Defendants Derrick and Noguchi request that the Court strike or disregard Plaintiff's motion to file a supplemental opposition to Defendants' motion to dismiss his First Amended Complaint. (ECF No. 13.) Plaintiff is attempting to file an unauthorized sur-reply, however, to the extent the Court accepts Plaintiff's motion, Defendants oppose.

This motion is based on this notice of motion and motion, the following memorandum of points and authorities, and the pleadings and orders on file in this action.

Dated: February 26, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
SEAN W. LODHOLZ
Supervising Deputy Attorney General

/s/ Erick J. Rhoan
ERICK J. RHOAN
Deputy Attorney General
Attorneys for Defendants Cisnernos, Collins, Florez, Leahy, Lines, Marsh, Morales, Phillips, Rocha, Sherman, Smith, and Williams

INTRODUCTION

Plaintiff seeks to undo waiving his opposition to Defendants' motion to dismiss under Federal Rule of Civil Procedure 12(b)(6). The Court should exercise its inherent power to enforce Local Rule 230(m), which bars unauthorized sur-replies. Alternatively, Plaintiff's motion should be denied on the merits. Plaintiff's intentional decision to oppose half of Defendants' moving papers is not excused and Defendants will be prejudiced if they must defend against allegations that should be waived. If the Court allows Plaintiff to supplement his opposition, Defendants request additional time to file a reply.

STATEMENT OF FACTS

Defendants Derrick and Noguchi moved to quash insufficient service of process of Plaintiff's First Amended Complaint or, alternatively, moved to dismiss under Federal Rule of Civil Procedure 12(b)(6). (ECF No. 9.) Plaintiff opposed, but only as to the motion to quash. (ECF No. 10.) Defendants replied, noting that Plaintiff waived his opposition to the motion to dismiss. (ECF No. 12.) Defendants' motion was deemed submitted after they filed a reply. (E.D. Cal. R. 230(m); *U.S. ex rel. Meyer v. Horizon Health Corp.*, 565 F.3d 1195, 1203 (9th Cir. 2009), *overruled on other grounds by U.S. ex rel. Hartpence v. Kinetic Concepts, Inc.*, 792 F.3d 1121 (9th Cir. 2015).)

Plaintiff now moves to "supplement" his opposition to include the Rule 12(b)(6) arguments he waived. (ECF No. 13)

ARGUMENT

I. THE COURT SHOULD EXERCISE ITS INHERENT POWERS TO STRIKE PLAINTIFF'S UNAUTHORIZED SUR-REPLY.

It is well established that district courts have inherent power to control their docket. *Ready Transp., Inc. v. AAR Mfg., Inc.*, 627 F.3d 402, 404 (9th Cir. 2010) (citing *Atchison, Topeka & Santa Fe Ry. Co. v. Hercules Inc.*, 146 F.3d 1071, 1074 (9th Cir. 1998).) After a reply is filed, no additional memoranda, papers, or other materials may be filed without Court approval. (E.D. Cal. R. 230(m).) This Court's local rules recognize only two narrow exceptions: (1) objections to new evidence submitted with a reply; and (2) submitting new authority published after a party's brief

was filed, with no additional argument. (E.D. Cal. R. 230(m)(1)-(2).)

Here, Defendants' motion to quash and motion to dismiss were fully briefed and submitted upon filing their reply. Plaintiff did not seek or obtain prior Court approval to file his supplemental briefing nor does Plaintiff's moving papers fall within the narrow exceptions to this Court's local rules. Plaintiff's motion is, instead, tantamount to an unauthorized sur-reply.

Plaintiff's motion should be denied.

II. ALTERNATIVELY, PLAINTIFF'S MOTION SHOULD BE DENIED ON THE MERITS.

Plaintiff argues he has good cause for filing this motion. He only addressed Defendants' motion to quash in "good faith" because it was a jurisdictional threshold and he did not intend to abandon his claims. (ECF No. 13 at 3.) However, Defendants' reply somehow "materially changed the posture of this case," when they waived service and informed him he waived his opposition to the motion to dismiss. (*Id.*) This waiver did not exist when Plaintiff opposed Defendants' motion. (*Id.* at 3-4.) Plaintiff states its for the Court's benefit to have a full briefing on the merits by allowing his supplemental opposition and he is entitled to liberal construction of his filings because he is a pro se litigant. (*Id.* at 4.)

Good cause does not exist on these facts. Plaintiff acknowledges Defendants' right to combine their Rule 12(b)(4) and Rule 12(b)(6) grounds together. (*Id.* at 3.) Plaintiff then made the "strategic decision" to intentionally ignore half of Defendants' motion. Plaintiff regrets this decision, but the Court's local rules do not allow a non-moving party to bifurcate a moving party's motion, respond to the portion it prefers, and then request a second round of briefing on the remainder under the guise that it conserves judicial resources.

Moreover, Defendants' waiving service did not materially change the grounds for dismissing Plaintiff's First Amended Complaint. Defendants' arguments were plain on their face when filed and existed independently of the grounds quashing insufficient mail service. Raising Plaintiff's waiver under Local Rule 230(c) in its reply was not a new argument that "changed circumstances," it is an automatic consequence of ignoring the Court's local rules. Plaintiff cannot claim surprise when a rule functions as written and pro se litigants must follow the same rules of procedure that govern other litigants. *King v. Atiyeh*, 814 F.2d 565, 567 (9th Cir. 1987).

Plaintiff also claims Defendants will not be prejudiced because the hearing is four weeks away and Defendants can file a sur-reply. (ECF No. 13 at 4.) However, briefing on this motion is now complete and Plaintiff's waiver has streamlined its adjudication for both the Court and Defendants. Nothing further is required and generating another round of briefing will require additional time for Defendants to reply to arguments that should have been made earlier.

Plaintiff's motion should be denied.

III. IF THE COURT IS WILLING TO EXCUSE PLAINTIFF'S ERROR, DEFENDANTS SEEK AN EXTENSION OF TIME TO FILE A SUPPLEMENTAL REPLY.

If the Court grants Plaintiff leave to file his supplemental opposition, Defendants request leave to file a full reply on the Rule 12(b)(6) arguments raised therein. (*See* ECF No. 13 at Exh. A.) Under Federal Rule of Civil Procedure 6(b)(1)(A), a court may extend a deadline when the request is made before the deadline expires and good cause is shown. Here, good cause exists because when Defendants' reply was drafted their Rule 12(b)(6) arguments were unopposed. A supplemental opposition will require a supplemental reply which will take additional time to research and write. Defense counsel will also be out of state on a pre-arranged vacation the week of February 23, 2026, and will not return until March 2, 2026,[1] and will require the additional time to draft Defendants' reply. Defendants, therefore, respectfully request their reply deadline be set within 14 days of the Court's adjudication of Plaintiff's motion to file a supplemental opposition.

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[1] Defense counsel was served a copy of Plaintiff's supplement opposition and drafted this response before going on vacation with instruction that it be filed once Plaintiff's supplemental opposition was filed with the Court.

CONCLUSION

Based on the foregoing, Defendants respectfully request the Court to strike Plaintiff's motion to supplement his opposition to Defendants' motion to quash and motion to dismiss. Alternatively, Plaintiff's motion should be denied for failing to demonstrate good cause to excuse his waiver. If the Court excuses Plaintiff's error, then Defendants request additional time to draft and file a supplemental reply.

Dated: February 26, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
SEAN W. LODHOLZ
Supervising Deputy Attorney General

/s/ Erick J. Rhoan
ERICK J. RHOAN
Deputy Attorney General
Attorneys for Defendants Derrick and Noguchi

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CERTIFICATE OF SERVICE

Case Name: **Brendan Ngehsi Newanforbi (BF3571) v. Andrew Derrick, et al.** No. **2:26-cv-00004-DJC**

I hereby certify that on February 26, 2026, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

DEFENDANTS' NOTICE OF MOTION AND MOTION TO STRIKE OR, IN THE ALTERNATIVE, OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE SUPPLEMENTAL OPPOSITION TO DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES

Participants in the case who are registered CM/ECF users will be served by the CM/ECF system.

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on February 26, 2026, at Fresno, California.

L. Lambert-Martinez	***/s/ L. Lambert-Martinez***
Declarant for eFiling	Signature

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

I further certify that some of the participants in the case are not registered CM/ECF users. On February 26, 2026, the foregoing document(s) have been mailed in the Office of the Attorney General's internal mail system, by First-Class Mail, postage prepaid, or have dispatched it to a third party commercial carrier for delivery within three (3) calendar days to the following non-CM/ECF participants:

Brendan Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
In Pro Se

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on February 26, 2026, at Fresno, California.

C. Henson	***/s/ C. Henson***
Declarant for Service by U.S. Mail	Signature

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